

Smt. Richa Mishra vs Navodit Mishra on 25 February, 2022

Bench: P. Sam Koshy, Parth Prateem Sahu

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NAFR

HIGH COURT OF CHHATTISGARH, BILASPUR

Order reserved on 23.11.2021

Order delivered on 25/02/2022

FAM No.65 of 2018

- Smt. Richa Mishra, W/o Navodit Mishra, aged 41 years, C/o Nemdhar Deewan, R/o Village Baharbod, Post Office Odiya, Police Station, Tahsil & District Bemetara (CG).

---- Appellant/Plaintiff

Versus

- Navodit Mishra, S/o Late Dr. N.K. Mishra, aged about 43 years, R/o Vikash Nagar, 27 Kholi, Police Station Civil Lines, Bilaspur, District Bilaspur (CG)

....Respondent/Defendant

For Appellant : Mr. Manoj Paranjpe, Advocate with Mr. Shubhank Tiwari, Advocate.

For Respondent : Mr. B.P. Sharma, Advocate with Miss Trisha Das, Advocates Hon'ble Mr. P. Sam Koshy & Hon'ble Mr. Parth Prateem Sahu, JJ CAV Order Per Parth Prateem Sahu, J;

1. Challenge in this appeal is to the judgment dated 14.12.2007 passed in Civil Case No.21A/2015 whereby learned Family Court, Bemetara dismissed application filed by plaintiff/ appellant under Section 9 of the Hindu Marriage Act, 1955 for the reasons mentioned therein.

2. This appeal was listed before this Court along with FAM No.24/2018 filed by respondent-husband challenging judgment and decree dated 13.12.2017 passed in Civil Suit No.1-A/2016 whereby learned Family Court, Bemetara dismissed application filed by respondent husband for grant of decree of divorce on the grounds enumerated in Section 13 (1) (i-a), (i-b) and (iii) of the Hindu Marriage Act, 1955.

3. Both the appeals, one by wife against rejection of application filed under Section 9 of the Hindu Marriage Act, 1955 for restitution of conjugal rights, and another by husband against rejection of application filed under Section 13 of the Hindu Marriage Act, 1955 for grant of decree of divorce, were heard together and reserved for orders.

4. FAM No.24/2018 filed by respondent husband is allowed; judgment and decree dated 13.12.2017 is set aside and decree of divorce is granted by this Court in favour of respondent husband under Section 13 (1) (i-a) of the Act of 1955.

5. In view of above, relief sought for by appellant-wife in this appeal cannot be granted. Consequently, this appeal stands dismissed.

Sd/-
(P. Sam Koshy)
Judge

Sd/-
(Parth Prateem Sahu)
Judge

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